
Decision of the National Commission sitting in a restricted formation on the outcome of investigation no. [...] conducted with Public Body A and Public Body B

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Deliberation no. 13FR/2023 of September 21, 2023

The National Commission for Data Protection sitting in a restricted formation, composed of Ms. Tine A. Larsen, President, and Messrs. Thierry Lallemand and Alain Herrmann, Commissioners;

Having regard to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016

on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC;

Having regard to the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection, in particular its Article 41;

Having regard to the internal rules of the National Commission for Data Protection adopted by decision no. 3AD/2020 dated January 22, 2020, in particular its Article 10.2;

Having regard to the regulation of the National Commission for Data Protection concerning the investigation procedure adopted by decision no. 4AD/2020 dated January 22, 2020, in particular its Article 9;

Considering the following:

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I. Facts and Procedure

1.
During its deliberation session on March 10, 2021, the National Commission for Data Protection sitting in plenary formation decided to open an investigation with Public Body A and Public Body B based on Article 38 of the law of August 1, 2018 on the organization of the National Commission for Data Protection and the general regime on data protection (hereinafter: the "law of August 1, 2018") and to appoint Mr. Marc Lemmer as the head of the investigation.

2.
The said decision specified that the investigation conducted by the National Commission for Data Protection (hereinafter: the "CNPD" or the "National Commission") aimed to "[c]ontrol the application and compliance with the GDPR[1] (and the legal texts providing for specific provisions regarding the protection of personal data) of the processing implemented by a geolocation system, particularly considering the opinion issued by the CNPD by deliberation no. [...] of [...] December 2020 regarding the request for an opinion submitted based on Article L.261-1 paragraph (4) of the Labor Code by the staff delegation [of Public Body A and Public Body B]."

3.
The "[...]" is a [...], located at: L - [...] (hereinafter: "Public Body A").
Public Body A [carries out missions of general interest].

4.

The “[...]” is a [...], located at: L - [...] (hereinafter: “Public Body B” and together with Public Body A hereinafter: “[...]” or the “controlled entities”).

Public Body B [carries out missions of general interest].

5.

On May 26, 2021, agents of the CNPD conducted an on-site visit to the administrative building [...] located at [...].

6.

By two emails dated June 2, 2021, the controlled entities provided the CNPD with additional information requested during the said visit.

1 Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter: the “GDPR”).

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7.

The “Report no. [...] concerning the on-site visit conducted on May 26, 2021 at Public Body A and Public Body B” (hereinafter: the “report concerning the on-site visit”) prepared by the agents of the CNPD was sent to the controlled entities by letter dated June 8, 2021.

It follows from this report that:

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the controlled entities had implemented a geolocation system (hereinafter: the “geolocation system”) from Company C (system [...]) in [...] service vehicles and/or construction machinery²;

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the geolocation system had “the following functionalities and characteristics:

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Permanent monitoring of Vehicles [service vehicles and/or construction machinery] in real-time using devices integrated into each vehicle;

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Connection of said devices to a central unit;

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Transmission of information via a GPRS network;

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Transmission of information to a third-party server ([...]);

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Event data recorder;

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Data processing software (“[...]”) and access to the location of the monitored vehicles via a control monitor (Annexes 4 and 5, photo [...])³; and

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the data collected by the geolocation system included “the following:

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Date and time of the start and end of the trip;

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State of the vehicle (in motion or at rest, including any breaks);

2 Report concerning the on-site visit, finding 3.

3 Report concerning the on-site visit, finding 7.

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Vehicle positioning data (within two meters) and vehicle route;

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Driving time and distance traveled; and

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Abnormal movement of the vehicle due to the day (Saturday or Sunday) or the time ("Geo-fencing" function)⁴;

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The geolocation system was associated with service vehicles, respectively with construction machinery, and not with employees, the cross-referencing between the geolocation of a service vehicle or construction machinery and the employee driving it being possible by cross-referencing with the employees' work records, which indicated which vehicle was used on which day by each employee.⁵

8.

The subjects of the investigation submitted written observations on the minutes related to the on-site visit by email dated June 9, 2021.

9.

Subsequently, the subjects of the investigation and the CNPD investigation service exchanged correspondence.⁶

10. At the end of its investigation, the head of the inquiry notified the subjects of the investigation on December 13, 2022, of a statement of grievances (hereinafter: the "initial statement of grievances") detailing the violations he believed were constituted in this case regarding the requirements prescribed by Article 13 of the GDPR (right to information), [...] and Article 5.1.c) and b) of the GDPR (principles of data minimization and purpose limitation).

The head of the inquiry proposed to the National Commission sitting in a restricted formation (hereinafter: the "Restricted Formation") to adopt four different corrective measures, as well as to impose an administrative fine on the subjects of the investigation in the amount of [...] euros.

11. By letter dated February 2, 2023, the subjects of the investigation submitted their observations regarding the initial statement of grievances.

4 Minutes related to the on-site visit, finding 8.

5 Minutes related to the on-site visit, finding 10.

6 See point 12 of the statement of grievances for a detailed list of exchanges throughout the investigation.

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12. In response, the head of the inquiry notified the subjects of the investigation on February 15, 2023, of a new statement of grievances modifying the initial statement of grievances (hereinafter: the "statement of grievances").

The head of the inquiry maintained the violations he believed were constituted in this case, as well as the corrective measures he proposed.

However, based on the information provided in the letter from the subjects of the

investigation dated February 2, 2023, he considered that the violations retained in the initial statement of grievances had not been committed intentionally, but were due to serious negligence. Consequently, he reduced the amount of the proposed administrative fine to [...] euros.

The opportunity to submit their written observations on the statement of grievances was offered to the subjects of the investigation. They did not provide any observations to the head of the inquiry.

13. The president of the Restricted Formation informed the subjects of the investigation by letter dated April 18, 2023, that their case would be included in the agenda of the Restricted Formation meeting on June 13, 2023, and that they were offered the opportunity to be heard. By email dated June 6, 2023, the subjects of the investigation confirmed their attendance at said meeting.

During this meeting, the head of the inquiry [...], and the subjects of the investigation, represented by [...], presented their oral observations in support of their written observations and answered questions posed by the Restricted Formation. The Restricted Formation allowed the subjects of the investigation to submit additional information requested during said meeting until June 28, 2023. The subjects of the investigation had the last word.

14. By emails dated June 21 and 29, 2023, the subjects of the investigation provided the additional information requested by the Restricted Formation. The subjects of the investigation informed the Restricted Formation in their email dated June 21, 2023, that the 2022 report of Public Body B was being finalized and could only be transmitted to them at the earliest in the next fifteen days.

15. The decision of the Restricted Formation on the outcome of the investigation will be based on:

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the processing of personal data resulting from the geolocation of service vehicles and construction machinery made available to employees of the

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controlled through the geolocation system and monitored by agents of the CNPD;

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Deliberation no. [...] of [...] December 2020 of the National Commission for Data Protection regarding the request for an opinion submitted based on Article L.261-1 paragraph (4) of the Labor Code by the staff delegation of Public Body A and Public Body B; and

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on the legal and regulatory provisions taken into account by the head of the investigation in the communication of grievances.

II. In law

II. 1. On the grounds for the decision

A. On the determination of the data controller

1. On the principles

16. According to Article 4.7 of the GDPR, the data controller is “the natural or legal person, the public authority, the service, or another body that, alone or jointly with others, determines the purposes and means of the processing.” According to Article 26.1 of the GDPR, “[w]hen two or more controllers jointly determine the purposes and means of processing, they are joint controllers.”

17. The concept of joint controllers has been clarified by the European Data Protection Board (hereinafter: the “EDPB”) in the “Guidelines 07/2020 on the concepts of controller and processor in the GDPR,” version 2.0, adopted on 7 July 2021 (hereinafter: the “Guidelines 07/2020”).

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According to these guidelines, “[t]he joint responsibility for processing should be assessed based on a factual rather than formal analysis of the actual influence exerted on the purposes and means of processing.” “Joint participation in determining the purposes and means implies that more than one entity exerts a determining influence on whether and how the processing takes place.” In practice, joint participation can take several forms, such as a common decision made by two or more entities or converging decisions adopted by two or more entities regarding the essential purposes and means of processing. A joint participation resulting from a common decision means that the parties decide together and implies a common intention. Decisions can be considered converging as long as they complement each other and are necessary for the realization of the processing, such that they have a concrete effect on the determination of the purposes and means of processing (“[...] the processing by each of the parties is inseparable from that of the other, that is to say, inextricably linked.”)

2. In this case

18. The CNPD in the “Deliberation no. [...] of [...] December 2020 of the National Commission for Data Protection regarding the request for an opinion submitted based on Article L.261-1 paragraph (4) of the Labor Code by the staff delegation of Public Body A and Public Body B” (hereinafter: the “opinion of the CNPD”) had concluded that “Public Body A and Public Body B must be considered joint controllers of processing, within the meaning of Articles 4 point (7) and 26 [...] [of the GDPR], insofar as they appear to jointly determine the purposes and means of the processing in question.”

19. In the communication of grievances, the head of the investigation considered that the controlled entities should be regarded as joint controllers of processing within the meaning of the GDPR for the processing carried out by a geolocation system.

20. Indeed, the controlled entities had themselves stated that they considered themselves to be joint controllers regarding the processing carried out within the framework of the system of

7 Guidelines 07/2020, point 52.

8 Guidelines 07/2020, point 54.

9 Guidelines 07/2020, point 55.

10 Document 1 from the head of the investigation.

11 Opinion of the CNPD, second paragraph.

12 Communication of grievances point 23.

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geolocation during the on-site visit by CNPD agents on May 26, 2021. They had particularly specified that [...].

[...]

28. In light of these circumstances, the Restricted Formation believes that the parties involved had jointly determined the purposes and means by which the geolocation data was processed.

29. It therefore aligns with the opinion of the head of the investigation and concludes that the parties involved should be classified as joint controllers of the processing for the processing activities referred to in this decision.

B. On the breach related to the obligation to inform the data subjects

1. On the principles

30. Pursuant to Article 12.1 of the GDPR, the “controller shall take appropriate measures to provide any information referred to in Articles 13 and 14 as well as to carry out any communication under Articles 15 to 22 and Article 34 regarding the processing to the data subject in a concise, transparent,

intelligible and easily accessible form, using clear and plain language [...]. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When the data subject requests it, the information may be provided orally, provided that the identity of the data subject is demonstrated by other means."

31. Article 13 of the GDPR provides as follows:

"1. When personal data relating to a data subject are collected from that data subject, the controller shall provide the data subject, at the time when the data in question are obtained, with all of the following information:

- a) the identity and contact details of the controller and, where applicable, of the representative of the controller;
- b) where applicable, the contact details of the data protection officer;

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- c) the purposes of the processing for which the personal data are intended as well as the legal basis for the processing;
- d) where the processing is based on Article 6(1)(f), the legitimate interests pursued by the controller or by a third party;
- e) the recipients or categories of recipients of the personal data, if any; and
- f) where applicable, the fact that the controller intends to transfer personal data to a third country or to an international organization, and the existence or absence of an adequacy decision by the Commission or, in the case of transfers referred to in Articles 46 or 47, or Article 49(1), second subparagraph, the reference to the appropriate or suitable safeguards and the means to obtain a copy or the place where they have been made available;

2. In addition to the information referred to in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following additional information which is necessary to ensure fair and transparent processing:

- a) the retention period for the personal data or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to the personal data, the rectification or erasure of such data, or a restriction of processing concerning the data subject, or the right to object to the processing and the right to data portability;
- c) where the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of processing based on consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) information on whether the provision of personal data is a statutory or contractual requirement or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data;

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personal data, as well as on the potential consequences of the non-provision of this data;

- f) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, useful information regarding the underlying logic, as well as the significance and expected consequences of this processing for the data subject.

3. When intending to carry out further processing of personal data for a purpose other than that for which the personal data was collected, the data controller shall provide the data subject in advance

with information about this other purpose and any other relevant information referred to in paragraph 2. 4. Paragraphs 1, 2, and 3 shall not apply where, and to the extent that, the data subject already has this information.

32. The communication to data subjects of information relating to the processing of their data is an essential element in the context of compliance with the general obligations of transparency under the GDPR¹³. These obligations have been clarified by the Article 29 Working Party in its guidelines on transparency under Regulation (EU) 2016/679, the revised version of which was adopted on April 11, 2018 (hereinafter: "WP 260 rev.01").

33. It should be noted that the EDPB has reiterated and reapproved the documents adopted by the said Group between May 25, 2016, and May 25, 2018, specifically the aforementioned guidelines on transparency¹⁴.

2. In this case

34. Regarding the obligation to inform, the CNPD, in the observations made at the end of its opinion rendered at the request of the staff delegation of Public Body A and Public Body B, had considered that one of the conditions for the lawfulness of the "processing envisaged by the employer" was that "the data subjects must be informed of the surveillance carried out in accordance with the provisions of Articles 12 and 13 of the GDPR as well as Article L.261-1 paragraph (2) of the Labor Code"¹⁵.

35. During the on-site visit on May 26, 2021, the subjects of the investigation stated to the CNPD agents that

- the personnel delegations of the subjects had been informed in advance of the implementation of the geolocation system¹⁶; and

- the employees concerned had been informed of the processing carried out by the geolocation system through displays in service vehicles and construction machinery, by an information note (also included in the intranet), as well as a memo and during a meeting.¹⁷

The subjects had provided the CNPD agents with a copy of the memo dated February 17, 2021¹⁸, as well as an information notice related to geolocation¹⁹.

36. Subsequently, the subjects transmitted several information documents to the CNPD:

37. By email dated June 2, 2021, the subjects sent to the CNPD "[...] [the report] between the personnel delegation and management [...], including the first mention of the GPS system, as well as the report [...] with a more in-depth discussion regarding the GPS topic; [...] ; an image of the information note in our vehicles [20]; [and] the information notices displayed in our locations (one copy in AL and in FR [...]) [21]".

38. By email dated October 15, 2021, the subjects sent another copy of the information notice²².

Furthermore, they stated that their employees had been informed of the geolocation "orally and in writing [...]" on June 9, 2020. The information

15 CNPD Opinion, page 15.

16 Minutes of the on-site visit, finding 4.

17 Minutes of the on-site visit, finding 11.

18 Document 9 of the investigation file.

19 Document 19 of the investigation file.

20 Document 22 of the investigation file.

21 Documents 20 and 21 of the investigation file.

22 Document 14 of the investigation file.

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were displayed in the [...] [premises of the controlled entities] for several months, in German and French and for both [...] [controlled entities].

39. By email dated March 24, 2022, the controlled entities transmitted to the CNPD a copy of the renewed internal memo dated January 11, 2022. They also confirmed that regarding the four copies of the information notice previously sent to the CNPD, namely one copy provided during the on-site visit on May 26, 2021, two copies attached to their email of June 2, 2021, and one copy attached to their email of October 15, 2021, it "is the same information notice, just in German and French, signed and unsigned. We used this notice to inform the staff."

40. By letter dated February 2, 2023, the controlled entities transmitted to the CNPD a copy of an email dated June 9, 2020, titled "GPS" and another copy of the information notice.

41. Finally, the controlled entities inserted a copy of the aforementioned email of June 9, 2020, below their email of June 21, 2023, to the Restricted Formation. They also attached four copies of the information notice and specified that the email of June 9, 2020, had been "sent to all staff at the beginning of the commissioning of the geolocation system with the corresponding annexes."

42. In the communication of grievances, the head of the investigation, after examining the documentation submitted to the CNPD agents by the controlled entities during the investigation, as well as the three information notices that had been communicated to the CNPD as part of the request for opinion submitted based on Article L.261-1.4 of the Labor Code, concluded that on the day of the on-site visit, a non-compliance with certain provisions of Article 13 of the GDPR was established. More specifically, he was of the opinion that on the day of the on-site visit, the controlled entities had failed in their obligation:

- to inform the data subjects about the identity of the data controller, as required by Article 13.1.a) of the GDPR, given that the controlled entities were not indicated as joint controllers in the documents provided to their employees;
- to inform the data subjects about the identity of the data protection officer, as required by Article 13.1.b) of the GDPR, because the existence of the officer did not appear in the documents provided to their employees;
- to inform the data subjects about the legal basis justifying the processing, as required by Article 13.1.c) of the GDPR, since the information notices did not mention a relevant legal basis under Article 6 of the GDPR;
- to inform the data subjects about the legitimate interests pursued, as required by Article 13.1.d) of the GDPR, given that the legitimate interests pursued by the controlled entities did not appear in the documents provided to their employees, although during the on-site visit the controlled entities stated that they based the processing on legitimate interest;
- to inform the data subjects about the appropriate safeguards put in place, as well as the means to obtain a copy or the location where they are made available, as required by Article 13.1.f) of the GDPR, because although the information notices mentioned "a transfer of data to a third country within the meaning of the GDPR (in this case, the United States of America)," the documents provided to employees did not mention the measures taken to ensure an adequate level of protection, and the information notices stated that this transfer was governed by the "[EU-U.S.] Privacy Shield [Framework]" whereas this adequacy decision had been invalidated by the Court of Justice of the European Union;
- to inform the data subjects about their right to lodge a complaint with the CNPD, as required by Article 13.2.d) of the GDPR, since this mention did not appear in the documents provided to employees.

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- 28 Communication of grievances, points 45 to 50.
 - 29 Communication of grievances, points 51 to 55.
 - 30 Communication of grievances, points 56 to 60.
 - 31 CJEU, Case C-311/18, judgment of July 16, 2020.
 - 32 Communication of grievances, points 61 to 66.
 - 33 Communication of grievances, points 67 to 69.
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43. The Restricted Formation wishes to emphasize that Article 13 of the GDPR refers to the obligation imposed on the data controller to "provide" all the information mentioned therein. The word "provide" is crucial in this context and it "means that the data controller must take concrete measures to provide the information in question to the data subject or to actively direct the data subject to the location of said information (for example, by means of a direct link, a QR code, etc.)"³⁴.

44. It further considers that a multi-layered approach to communicating information about transparency to data subjects can be used in an offline or non-digital context, that is to say, in a real environment such as personal data collected through a geolocation system. The first level of information (warning sign, information note, etc.) should generally include the most essential information, namely the details of the purpose of the processing, the identity of the data controller, and the existence of the rights of data subjects, as well as the information that has the greatest impact on the processing or any processing that may surprise the data subjects. The second level of information, that is to say, all the information required under Article 13 of the GDPR, could be provided or made available by other means, such as, for example, a copy of the privacy policy sent by email to employees.³⁵

45. Regarding the first level of information, the Restricted Formation notes that on the sticker affixed to the service vehicles and construction machinery of the controlled entities, a photo of which was attached to the email from the controlled entities dated June 2, 2021, were the mentions "GPS überwacht mit [...]" and "Surveillé par GPS avec [...]", a reference to "[...].com", as well as the logos "[...]" and "Made in Luxembourg". However, it observes that this sticker did not contain the information required under Article 13 of the GDPR and not even the elements required by the first level of information. It notably lacked the details of the purpose of the processing, the identity of the joint controllers of the processing, and the existence of the rights of data subjects.

34 Cf. WP 260 rev.01, point 33.

35 Cf. WP260 rev.01, point 38.

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46. The Restricted Formation further notes the copy of the "Service Note regarding the use of GPS installed in the vehicles and machinery [...] [of the controlled entities]" dated February 17, 2021, which was provided to the agents of the CNPD during the on-site visit on May 26, 2021³⁶. This note specified certain practical aspects of the use of the geolocation system such as the person responsible for the system, the retention periods for geolocation data, and access to the system. However, the Restricted Formation observes that this note also did not contain the elements required by the first level of information. It notably lacked the details of the purpose of the processing, the identity of the joint controllers of the processing, and the existence of the rights of data subjects. Furthermore, the documentation submitted to the Restricted Formation contains no evidence that the information note had actually been individually transmitted to the employees of the controlled entities prior to the on-site

visit by the agents of the CNPD.

47. Regarding the second level of information, the Restricted Formation takes note of
- the three information notices that had been communicated to the CNPD as part of the request for an opinion submitted based on Article L.261-1.4 of the Labor Code³⁷. Two of these documents³⁸ were in French, dated June 9, 2020, and titled "Information Notice regarding the implementation of geolocation of professional vehicles." Public Body A or Public Body B were identified as the data controllers. The third document³⁹ was in German, dated June 2, 2020, and titled "Informationsblatt bezüglich des Einsatzes eines Geolokalisierungssystems in Dienstfahrzeugen." Public Body A was identified as the data controller;

36 Documents 9 and 24 of the investigation file.

37 Document 17 of the investigation file.

38 Documents 11 and 13 of the investigation file.

39 Document 12 of the investigation file.

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of the information notice titled "Informationsblatt bezüglich des Einsatzes eines Geolokalisierungssystems in Dienstfahrzeugen" which had been provided to the agents of the CNPD during the on-site visit on May 26, 2021⁴⁰. It was in German, undated, and identified Public Body B as the data controller;

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of the two information notices that the subjects had attached to their email of June 2, 2021. One document was in French and titled "Notice d'information concernant la mise en place d'une géolocalisation de véhicules professionnels"⁴¹. The other document was in German and titled "Informationsblatt bezüglich des Einsatzes eines Geolokalisierungssystems in Dienstfahrzeugen"⁴². None of these documents were dated. The French version identified Public Body B as the data controller and the German version identified Public Body A. Indeed, it was evident from the cover page, which accompanied these documents, that they were drafts of models that Company C had made available to its clients along with certain other legal information to develop a "note d'information [...]" to be provided to the concerned employees";

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of the information notice titled "Informationsblatt bezüglich des Einsatzes eines Geolokalisierungssystems in Dienstfahrzeugen"⁴³ that the subjects had attached to their email of October 15, 2021, which was in German and dated June 9, 2020. It informed that Public Body B was the data controller;

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of the copy of the information notice titled "Notice d'information concernant la mise en place d'une géolocalisation de véhicules professionnels" which was attached to the subjects' letter of February 2, 2023, and which was in French and dated June 9, 2020⁴⁴. It identified Public Body A as the data controller;

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of the four copies of the information notice that were attached to the subjects' email of June 21, 2023, to the Restricted Formation and which were dated June 9, 2020. Two of these documents were in French and titled "Notice d'information concernant la mise en place d'une géolocalisation de véhicules professionnels".

40 Document 19 of the investigation file.

41 Document 21 of the investigation file.

42 Document 20 of the investigation file.

43 Document 14 of the investigation file.

44 Document 9 of the subjects.

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Public Body B or Public Body A were identified as the data controllers.

The other two documents were in German and titled "Informationsblatt bezüglich des Einsatzes eines Geolokalisierungssystems in Dienstfahrzeugen".

Public Body B or Public Body A were identified as the data controllers.

The Restricted Formation considers that, except for the divergent information regarding the data controller and the legal basis for processing in the different language versions, the content of the aforementioned information notices was almost identical.

48. It also observes that the email of June 9, 2020⁴⁵ that the subjects inserted below their email of June 21, 2023, and the four attached information notices, had been addressed to their employees individually, namely to their professional email addresses.

49. However, it notes that the aforementioned information notices did not contain all the information required under Article 13 of the GDPR. Thus, they did not mention the joint controllers of the processing (Article 13.1.a) of the GDPR), the data protection officer of the subjects (Article 13.1.b) of the GDPR), the information regarding the relevant legal basis under Article 6 of the GDPR (Article 13.1.c) of the GDPR), the legitimate interests pursued by the joint controllers of the processing (Article 13.1.d) of the GDPR), the details of transfers to third countries and more specifically relevant information on the existence or absence of an adequacy decision, the appropriate or suitable safeguards and the means to obtain a copy or the location where they were made available (Article 13.1.f) of the GDPR) and the information regarding the right to lodge a complaint with the supervisory authority (Article 13.2.d) of the GDPR), in this case, the CNPD.

50. It also finds that the information notices combined with the display in service vehicles and construction machinery and/or the memo did not contain all the information required by Article 13 of the GDPR.

45 [...].

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51. The subjects of the investigation had further claimed to have provided oral information to employees during a meeting.

The Restricted Formation notes that it does not result from the reports relating to the meetings between [...] [the staff delegation and management], copies of which were attached to the email from the subjects of the investigation dated June 2, 2021, that the representatives of the staff delegations had been informed of all the information required by Article 13 of the GDPR. It also considers that information provided to the staff delegation could at most be qualified as collective information, and not as individual information for the employees.

Consequently, the Restricted Formation finds that the documentation submitted by the subjects of the investigation contains no evidence that the employees of the subjects had been validly informed, prior to the on-site visit by the agents of the CNPD, orally in accordance with Article 13 of the GDPR.

52. In light of the above, the Restricted Formation aligns itself with the opinion of the head of investigation and concludes that a non-compliance with Article 13 of the GDPR was established as of the date of the on-site visit by the agents of the CNPD.

C. [...]

[...]

D. On the breach related to the principle of data minimization

1. On the principles

62. In accordance with Article 5.1.c) of the GDPR, personal data must be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (data minimization).”

63. Article 5.1.b) of the GDPR further states that personal data must be “collected for specified, explicit, and legitimate purposes, and not further processed in a manner that is incompatible with those purposes; [...] (purpose limitation).”

2. In this case

64. Regarding the principle of minimization, the CNPD, in the observations made at the end of its opinion, had estimated that one of the conditions for the lawfulness of the “processing envisaged by the employer” was that “the geolocation of construction machinery can only be activated outside of working hours, except for employees working alone and performing dangerous tasks in remote areas, in which case the activation of geolocation must be done by the employees.”⁴⁶

65. During the on-site visit, the subjects of the investigation stated to the agents of the CNPD that

- the geolocation system installed in the service vehicles or construction machinery of the subjects was not equipped with a deactivation button⁴⁷;
- the service vehicles and construction machinery could not be used for private purposes⁴⁸;
- the subjects feared that in the case of the installation of a deactivation button, the geolocation system would not be reactivated in the evening, due to forgetfulness, so that the machinery would not be protected against theft⁴⁹;
- the geolocation system was used for several purposes, namely the safety and health of employees, monitoring and verification of employees' working time, issuing invoices, optimizing the work process, and the security of service vehicles and construction machinery⁵⁰;

⁴⁶ CNPD Opinion, page 15.

⁴⁷ Minutes of the on-site visit, finding 9.

⁴⁸ Ibid.

⁴⁹ Ibid.

⁵⁰ Minutes of the on-site visit, finding 12.

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in the past, emergency situations in which immediate tracking of vehicles was necessary (for example, [...]) were managed based on the information available to those being monitored in specific situations⁵¹;

-

service vehicles and construction machinery had been subject to attempted thefts (movements)⁵².

66. The head of the investigation noted in the communication of grievances that the geolocation system was “notably installed on construction machinery” and that it was not equipped with a deactivation button⁵³.

67. He also recalled that "regarding construction machinery, the CNPD's Opinion establishes that 'concerning the monitoring of construction machinery [...] [of those being monitored], the National Commission is of the opinion that geolocating them during working hours would amount to monitoring the employees of the data controllers in a quasi-permanent manner. Indeed, as indicated by [...] [the monitored parties] in [...] [their] letter of October 2, 2020, the personnel [...] [of the monitored parties] often work alone or in very small teams. It is therefore easy to link a particular machine to its user. [...] The National Commission nevertheless understands the need for [...] [the monitored parties] to be able to protect their construction machinery against theft and also to be able to track the working hours of employees. In this regard, the National Commission is of the opinion that geolocation of construction machinery activated only outside working hours, and deactivated by employees when they start using a particular machine, would achieve these two objectives while being less intrusive to the privacy of employees [...] [of the monitored parties]. Furthermore, the National Commission acknowledges that geolocation of construction machinery during working hours could be useful, even necessary, to ensure the safety of employees who perform dangerous tasks alone (for example, [...]) in remote locations. [...] Therefore, in light of the sometimes perilous activities carried out by employees [...] [of the monitored parties], in spaces [...] that can be quite remote, the National Commission is of the opinion that geolocation of construction machinery could nevertheless be activated during working hours when they are used by employees working alone in very remote spaces (for example, [...]) and performing dangerous tasks. The activation should then be carried out by the employee themselves."54.

68. He concluded "that none of the elements obtained during the on-site visit [...] [were] of a nature to alter the argumentation developed in the CNPD's Opinion" and that no element of the documentation submitted to the CNPD contained contrary evidence55. He therefore found that non-compliance with Article 5.1.c) of the GDPR was established as of the date of the on-site visit56.

69. The monitored parties specified in an email dated June 2, 2021, that in the past, vehicles had been moved on a construction site but had not been stolen and that this incident had not been reported to the police.

70. Subsequently, the monitored parties explained in their letter dated February 2, 2023, that the geolocation system had been installed in response to a request from the staff who justified the request "out of concern for personal safety." They particularly explained that "the workers [...] working partly alone outdoors and potentially far from homes, [...] with more or less heavy equipment. Faced with the omnipresent risk of accidents, employees wanted assurance that their exact position would be known to avoid unnecessary delays in case emergency intervention became necessary" and that "[c]onsequently, a system allowing the worker to turn it off or on according to their needs, as proposed by the CDG, would always carry the risk of forgetting to activate it when needed. Such a module would clearly be contrary to the purpose sought by the employees and would diminish the interest in such a system." Furthermore, they explained that although an opinion had been requested from the CNPD by the staff delegation, the employees concerned had never felt personally disturbed by the geolocation and any infringement of their privacy would have remained "purely theoretical."

51 Minutes of the on-site visit, finding 12 (i).

52 Minutes of the on-site visit, finding 12 (v).

53 Communication of grievances, points 81 and 82.

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54 Communication of grievances, point 83.

55 Communication of grievances, point 84.

56 Communication of grievances, point 85.

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They also emphasized that continuous monitoring of employees was never the intended purpose of the geolocation system.

To confirm the above, the subjects had attached to their aforementioned letter two witness statements from employees of the subjects⁵⁷, as well as [...] [several reports from the meetings of their governing bodies]. The Restricted Formation notes that these documents mentioned the safety of employees as one of the purposes for implementing the geolocation system.

71. During the session of the Restricted Formation, the subjects reiterated these statements and also confirmed that contrary to what was indicated in the information notices⁵⁸, the service vehicles and construction machinery were reserved for strictly professional use. They also explained that the tracking of working hours was currently done by clocking in at the technical facility [...] for the workers and that the use of the geolocation system was an alternative means that could be employed to allow workers to go directly (by their private means) to the construction sites and for the subjects to simultaneously verify the written working time declarations (via the geolocation system of the construction machinery).

72. Given the explanations regarding the purposes of the processing provided by the subjects in their letter of February 2, 2023, and during the session of the Restricted Formation, as well as the confirmation that the construction machinery was reserved for strictly professional use, the Restricted Formation considers that the geolocation system can be used to ensure the safety of workers working alone in isolated locations during working hours, without requiring that a separate activation button be installed, and to verify the written working time declarations of workers authorized to go directly to the construction sites.

73. In light of these circumstances, the Restricted Formation believes that there is no need to find a breach of Article 5.1.c) of the GDPR.

57 Exhibit 1 of the subjects.

58 The information notices mentioned the following: “The geolocation system can be deactivated on vehicles that may be used outside of working hours for private reasons” or “Das Geolokalisierungssystem kann bei den Fahrzeugen deaktiviert werden, die außerhalb der Arbeitszeiten für private Zwecke genutzt werden dürfen.”

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E. On the breach related to the obligation of purpose limitation

1. On the principles

74. Article 5.1.b) of the GDPR states that personal data must be “collected for specified, explicit, and legitimate purposes and not further processed in a manner that is incompatible with those purposes; [...] (purpose limitation).”

75. Article 6.1 of the GDPR provides that processing is lawful only if, and to the extent that, at least one of the six legal bases listed in this article applies.

76. Furthermore, Article L. 261-1.1 of the Labor Code states that “the processing of personal data for the purpose of monitoring employees in the context of employment relationships may only be implemented by the employer in the cases referred to in Article 6, paragraph 1, letters a) to f)” of the GDPR, and in accordance with the provisions of that article.

77. Regarding the requirement that the purpose be “legitimate,” the Article 29 Working Party in its Opinion 03/2013 on purpose limitation, adopted on April 2, 2013 (hereinafter: “WP 203”)⁵⁹, clarified that for a purpose to be legitimate, the processing must, at all stages and at all times, be based on at least one of the legal bases provided for in Article 7 of Directive 95/46/EC⁶⁰ and that Article 6.1.b) of

said directive further requires that the purposes must comply with all provisions of applicable data protection law, as well as any other applicable legislation, such as labor law, general contract law, consumer law, etc.⁶¹.

78. In relation to this opinion, the EDPS specified in its “Guidelines 4/2019 on Article 25 Data Protection by Design and by Default,” whose version 2.0 was adopted on October 20, 2020, that the “Article 29 Working Party” provided guidance on the interpretation of the principle of purpose limitation within the framework of Directive 95/46/EC” and that “[a]lthough this opinion was not adopted by the committee, it may still retain its relevance, given that the principle is worded in the same manner in the GDPR”⁶².

2. In this case

79. The CNPD at the end of its opinion observed that it understood that the controlled parties wished to implement the proposed processing among other things to “ensure the tracking of goods due to their particular nature (hazardous materials, foodstuffs)”⁶³.

80. The head of the investigation noted in the statement of objections that “it appears from the Information Notes (DOCUMENTS 11, 12, 13, and 14) that one of the purposes of the Processing is the ‘Guarantee of tracking goods due to their particular nature (hazardous materials, foodstuffs, ...),’” respectively in the German versions “Sicherstellung der Warennachverfolgung aufgrund der besonderen Art der transportierten Waren (gefährliche Stoffe, Lebensmittel, ...)”⁶⁴ and that “the transport of goods does not appear [however] in any of the corporate purposes listed in the statutes of the Controlled Parties”⁶⁵.

81. He concluded that “[i]f the transport of goods can constitute in itself and in certain cases a legitimate purpose, this cannot be the case if this purpose does not cover an operational reality”⁶⁶. Thus, after noting that “it does not emerge at all from the investigation that the Controlled Parties would actually engage in a transport of goods,” he determined that the purpose related to the transport of goods was devoid of legitimacy⁶⁷, so that non-compliance with Article 5.1.b) of the GDPR was established as of the day of the on-site visit⁶⁸.

82. During the session of the Restricted Formation, the controlled parties specified regarding the transport of goods that in order to carry out their projects, they were

62 Cf. footnote 34.

63 CNPD Opinion, page 15.

64 Statement of objections, point 89.

65 Statement of objections, point 90.

66 Statement of objections, point 91.

67 Ibid.

68 Statement of objections, point 93.

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required to transport earth and stones, as well as other similar materials that they consider to be goods.

83. The Restricted Formation recalls that for a purpose to be legitimate, the processing must in particular be based on a relevant legal basis under Article 6 of the GDPR.

84. It notes that the monitoring of goods due to their particular nature was mentioned as one of the purposes of the processing in the information notices that the controlled entities had sent to their employees, and that during the on-site visit, the controlled entities invoked their legitimate interests as

the legal basis for the processing (Article 6.1.f) of the GDPR)⁶⁹.

85. The Restricted Formation has already noted that the controlled entities did not mention in the information notices the legitimate interests pursued by the joint controllers of the processing (Article 13.1.d) of the GDPR) (see point 49 of this decision) [...]70.

86. It nevertheless expresses its doubts regarding the qualification of the earth and stones transported by the controlled entities as elements that deserve monitoring due to their particular nature as understood by the CNPD, that is to say, whether they are hazardous materials or perishable or particularly valuable goods. Thus, the activities in which the controlled entities were actually engaged did not correspond to the activities that the CNPD had considered in its opinion. Indeed, it was only during the investigation that it became clear that the purpose of monitoring the goods did not reflect an operational reality.

87. It considers that monitoring goods due to their particular nature did not constitute a real and therefore legitimate purpose, and could not therefore justify the use of geolocation based on Article 6.1.f) of the GDPR for this purpose.

88. In light of the above, the Restricted Formation aligns itself with the opinion of the head of the investigation and concludes that a non-compliance with Article 5.1.b) of the GDPR was established on the day of the on-site visit by the agents of the CNPD.

69 Minutes of the on-site visit, finding 13.

70 [...].

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II. 2. On the fine and corrective measures

1. On the principles

89. In accordance with Article 12 of the law of August 1, 2018, the National Commission has the powers provided for in Article 58.2 of the GDPR:

- “a) to warn a controller or a processor that the intended processing operations are likely to violate the provisions of this regulation;
- b) to reprimand a controller or a processor when the processing operations have resulted in a violation of the provisions of this regulation;
- c) to order the controller or the processor to comply with requests made by the data subject in order to exercise their rights under this regulation;
- d) to order the controller or the processor to bring the processing operations into compliance with the provisions of this regulation, where appropriate, in a specific manner and within a specified period;
- e) to order the controller to communicate to the data subject a personal data breach;
- f) to impose a temporary or definitive limitation, including a prohibition, on the processing;
- g) to order the rectification or erasure of personal data or the restriction of processing in accordance with Articles 16, 17, and 18 and the notification of these measures to the recipients to whom the personal data have been disclosed in accordance with Article 17(2) and Article 19;
- h) to withdraw a certification or to order the certification body to withdraw a certification issued in accordance with Articles 42 and 43, or to order the certification body not to issue a certification if the applicable requirements for certification are not or are no longer met;

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- i) impose an administrative fine pursuant to Article 83, in addition to or in place of the measures referred to in this paragraph, depending on the specific characteristics of each case;

j) order the suspension of data flows addressed to a recipient located in a third country or to an international organization.”

90. In accordance with Article 48 of the law of August 1, 2018, the CNPD may impose administrative fines as provided for in Article 83 of the GDPR, except against the State or municipalities.

91. Article 83.1 of the GDPR provides that each supervisory authority ensures that the administrative fines imposed are, in each case, effective, proportionate, and dissuasive.

92. Article 83.2 of the GDPR specifies the elements that must be taken into account to decide whether to impose an administrative fine and to determine the amount of that fine:

“a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing concerned, as well as the number of affected individuals and the level of damage they have suffered;

b) whether the infringement was committed intentionally or negligently;

c) any measures taken by the data controller or the processor to mitigate the damage suffered by the affected individuals;

d) the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures they have implemented pursuant to Articles 25 and 32;

e) any relevant previous infringements committed by the data controller or the processor;

f) the degree of cooperation established with the supervisory authority in order to remedy the infringement and mitigate any possible negative effects;

g) the categories of personal data affected by the infringement;

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h) how the supervisory authority became aware of the infringement, including whether, and to what extent, the data controller or the processor notified the infringement;

i) when measures referred to in Article 58(2) have previously been ordered against the data controller or the processor concerned for the same matter, compliance with those measures;

j) the application of approved codes of conduct pursuant to Article 40 or approved certification mechanisms pursuant to Article 42; and

k) any other aggravating or mitigating circumstances applicable to the circumstances of the case, such as the financial benefits gained or losses avoided, directly or indirectly, as a result of the infringement.”

93. The imposition of administrative fines has been clarified by the Article 29 Working Party in its “Guidelines on the application and setting of administrative fines for the purposes of Regulation (EU) 2016/679” adopted on October 3, 2017. These guidelines have been reiterated and reapproved by the EDPB. The Restricted Formation emphasizes that these guidelines have been supplemented by the “Guidelines 04/2022 on the calculation of administrative fines under the GDPR” from the EDPB, of which version 2.1 was adopted on May 24, 2023.

94. The Restricted Formation wishes to clarify that the facts taken into account in the context of this decision are those observed at the beginning of the investigation. Any subsequent changes regarding the data processing subject to the investigation, even if they fully or partially establish compliance, do not retroactively annul an established infringement.

95. Nevertheless, the steps taken by the parties under investigation to comply with the GDPR during the investigation procedure or to remedy the infringements identified by the head of the investigation in the communication of grievances are taken into account by the Restricted Formation in the context of any corrective measures to be pronounced and/or in determining the amount of any administrative fine to be imposed.

71 See EDPB Endorsement Decision 1/2018 of May 25, 2018, available at:

https://edpb.europa.eu/sites/edpb/files/files/news/endorsement_of_wp29_documents_en_0.pdf.

72 The guidelines on the calculation of fines are currently only available in English.

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2. In this case

2.1 Regarding the imposition of an administrative fine

96. In the statement of objections, the head of the investigation proposed to the Restricted Formation to impose an administrative fine of [...] euros against the controlled entities, “for the payment of which the Controlled will be jointly liable”⁷³.

97. The controlled entities, in their letter dated February 2, 2023, in which they responded to the initial statement of objections, first raised the issue of the CNPD's lack of jurisdiction to impose an “administrative sanction” [...]. As a subsidiary argument, the controlled entities contested the amount of the administrative fine proposed by the head of the investigation in the initial statement of objections, particularly in light of previous decisions made by the Restricted Formation. They also disputed any intention on their part to commit the violations noted in the initial statement of objections.

98. The head of the investigation, in his letter dated February 15, 2023, by which he notified the controlled entities of the statement of objections, stated that “[r]egarding the arguments related to the lack of jurisdiction of the National Commission for Data Protection to impose an administrative sanction [...]” that “these are rejected and, consequently, are not likely to modify the statement of objections (CDG).”

99. During the session of the Restricted Formation on June 13, 2023, the controlled entities reiterated the aforementioned statements.

2.1.1 On the jurisdiction of the CNPD to impose an administrative fine

100. [...] given that the exemption in Article 48.1 of the law of August 1, 2018, only concerns “the State and municipalities” and not legal persons under public law in general, the Restricted Formation considers that it is competent to impose administrative fines [...] [on Public Bodies A and B].

101. [...]

73 Statement of objections, point 125.

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2.1.2 On the appropriateness of imposing an administrative fine

102. In order to decide whether to impose an administrative fine, the Restricted Formation analyzes the criteria set out in Article 83.2 of the GDPR.

103. Regarding the nature and severity of the violation (Article 83.2.a of the GDPR), it notes that concerning the breach of Article 5.1.b) of the GDPR, it constitutes a breach of a fundamental principle of the GDPR (and of data protection law in general), namely the principle of purpose limitation enshrined in Chapter II “Principles” of the GDPR. Regarding the breach of the obligation to inform the data subjects in accordance with Article 13 of the GDPR, it recalls that information and transparency regarding the processing of personal data are essential obligations for data controllers, so that individuals are fully aware of how their personal data will be used once collected. A breach of Article 13 of the GDPR thus constitutes an infringement of the rights of the data subjects. Furthermore, this right to information has been strengthened under the GDPR, which reflects its particular importance.

104. Regarding the duration criterion (Article 83.2.a of the GDPR), the Restricted Formation finds that these breaches have persisted over time, at least since [...] March 2021 and until the day of the on-site visit. Indeed, the controlled entities explained during the session of the Restricted Formation that the geolocation system had been deactivated pending a response from the CNPD. However, the letter [...] that the controlled entities attached to their email to the Restricted Formation on June 21, 2023, specifies that the geolocation system [...] [was] reactivated after the controlled entities became aware

of the CNPD's opinion and before the on-site visit by CNPD agents on May 26, 2021.

105. Regarding the number of affected data subjects and the level of harm they have suffered (Article 83.2.a of the GDPR), the Restricted Formation notes that this concerns all employees of the controlled entities who used service vehicles and construction machinery equipped with the geolocation system. In this regard, it takes into account the explanations provided by the controlled entities during the session of the Restricted Formation, according to which the individuals concerned by the geolocation were the [...] worker-employees who left daily with the service vehicles and used the construction machinery, as well as their [...] other employees who occasionally used one of the vehicles.

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of service. The Restricted Formation notes that only one third of the employees could be monitored continuously.

106.

Regarding the question of whether the breaches were committed intentionally or negligently (Article 83.2.b of the GDPR), the Restricted Formation recalls that "intention," meaning an infringement committed deliberately, encompasses both knowledge and will in relation to the characteristics of an infringement, while "non-deliberately" (by negligence) means that there was no intention to commit the violation, although the data controller or the processor did not comply with the duty of care imposed on them by law.

The subjects of the investigation explained in their aforementioned letter dated February 2, 2023, that they were initially wary of the geolocation system, but that said system had nevertheless been installed at the request of the employees primarily for security reasons. They also emphasized that at no time was continuous monitoring of employees the intended purpose of the geolocation system (cf. point 70 of this decision).

The Restricted Formation also takes into account the statements of the head of the investigation, which indicate that "the subjects of the investigation had a number of internal discussions regarding how to concretely adapt the CNPD's Opinion to their needs (DOCUMENTS 28 and 29)" which "at no time, [...] indicate any intention to ignore the recommendations of the CNPD's Opinion."

While the Restricted Formation believes that the facts and breaches identified do not reflect an intentional violation of the GDPR by the subjects of the investigation, it nevertheless considers that the breaches were committed negligently.

107.

Regarding the measures taken by the subjects of the investigation or their processor to mitigate the damage suffered by the affected individuals (Article 83.2.c of the GDPR), the Restricted Formation takes into account the measure taken by the subjects of the investigation and refers to Chapter II.2, Section 2.2 of this decision for related explanations.

The subjects of the investigation also stated in their letter dated February 2, 2023, as well as during the session of the Restricted Formation, that they had appointed an external data protection officer, namely Company D, even before the request for an opinion addressed to the CNPD and that this officer "had, in particular, the mission of ensuring the compliance of [...] [the subjects of the investigation] with the rules of the GDPR." However, since this appointment had not resulted in a mitigation of the damage, the Restricted Formation cannot consider it as a mitigating factor.

This also applies to the aforementioned deactivation of the geolocation system, given that the subjects of the investigation had reactivated the system after receiving the CNPD's opinion and before the on-site visit by CNPD agents (cf. point 104 of this decision).

108.

Regarding the degree of cooperation established with the supervisory authority (Article 83.2.f of the GDPR), the Restricted Formation takes into account the statement of the head of the investigation that "the subjects of the investigation demonstrated good cooperation."

109.

Regarding the categories of personal data concerned by the violation (Article 83.2.g of the GDPR), these include the date and time of the start and end of the journey, the state of the vehicle (in motion or stationary, including any pauses), the vehicle's positioning data (within two meters) and the vehicle's route, driving time and distance traveled, and the abnormal movement of the vehicle due to the day (Saturday or Sunday) or the time (the "Geo-fencing" function). The subjects of the investigation stated during the on-site visit by CNPD agents that the geolocation system was associated with service vehicles and construction machinery and not with employees. However, the correlation between the geolocation of the vehicle and the employee driving it was possible by cross-referencing with the employees' work records, as these documented which vehicle was used on which day by which employee.

110.

Regarding any other aggravating or mitigating circumstances applicable to the circumstances of the case (Article 83.2.k of the GDPR), the Restricted Formation takes into account the statements of the head of the investigation that "the identified violations are not a

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not likely to provide an economic benefit to the Controlled Entities. The head of the investigation also did not find any elements allowing for a conclusion of avoided losses.⁷⁹

111.

The Restricted Formation notes that the other criteria of Article 83.2 of the GDPR are neither relevant nor likely to influence its decision regarding the imposition of an administrative fine and its amount.

112.

Therefore, the Restricted Formation considers that the imposition of an administrative fine is justified in light of the criteria set out in Article 83.2 of the GDPR for violations of Articles 5.1.b) and 13 of the GDPR.

2.1.3 On the amount of the fine

113.

The Controlled Entities submitted to the Restricted Formation via emails dated June 21 and June 29, 2023, their respective accounts for the year 2022.

114.

Regarding the amount of the administrative fine, the Restricted Formation recalls that Article 83.3 of the GDPR provides that in the case of multiple violations, as is the case here, the total amount of the fine may not exceed the maximum amount set for the most serious violation. Since a violation of Articles 5 and 13 of the GDPR is attributed to the Controlled Entities, the maximum amount of the fine that can be imposed is 20 million euros or 4% of the total worldwide annual turnover, with the higher amount being retained, in accordance with Article 83.5 of the GDPR.

115.

In light of the responsibility of the Controlled Entities, their financial capacities, and the relevant criteria of Article 83.2 of the GDPR mentioned above in the chapter "2.1.2 On the appropriateness of imposing an administrative fine," the Restricted Formation considers that the imposition of a fine of two thousand five hundred (2,500) euros is both effective, proportionate, and deterrent, in accordance with the requirements of Article 83.1 of the GDPR.

2.2 Regarding the implementation of corrective measures

116.

In the statement of objections, the head of the investigation proposed to the Restricted Formation to adopt the following corrective measures: "within a period of 1 month from the notification to the Controlled Entities of the decision made by the Restricted Formation:

☐

To issue against the Controlled Entities under Article 58.2 d) of the GDPR an injunction to bring the Processing into compliance with the provisions of 13.1 a, b, c, d, f and 13.2 d) of the GDPR and more specifically to complete, respectively rectify the information measures intended for Employees, by:

- completing the identity of the data controller;
- providing the identity of the data protection officer;
- correcting the legal basis for the Processing;
- providing the legitimate interests pursued by the Controlled Entities;
- indicating whether or not there is a decision of adequacy and, if applicable, indicating the existence of appropriate safeguards and the means to obtain a copy thereof;
- indicating the right to lodge a complaint with the supervisory authority;
- harmonizing the rectified German and French information notes so that they have identical content; and to communicate any evidence capable of demonstrating compliance with this injunction.

☐

[...]

☐

To issue against the Controlled Entities under Article 58.2 d) of the GDPR an injunction to bring the Processing into compliance with the provisions of Article 5.1 c) of the GDPR and more specifically to equip the geolocation system installed in construction machinery with a deactivation button and to communicate any evidence capable of demonstrating compliance with this injunction.

☐

To issue against the Controlled Entities under Article 58.2 d) of the GDPR an injunction to bring the Processing into compliance with the provisions of Article 5.1 b) of the GDPR and more specifically to remove from the Information Notes the purpose "Guarantee of tracking goods due to their particular nature (materials

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dangerous goods, foodstuffs,...)", respectively in the German versions "Sicherstellung der Warennachverfolgung aufgrund der besonderen Art der transportierten Waren (gefährliche Stoffe, Lebensmittel,...)" and to provide any evidence capable of demonstrating compliance with this injunction."80

117. Regarding the corrective measures proposed by the head of the investigation and by reference to point 95 of this decision, the Restricted Formation takes into account the steps taken by the controlled

entities to comply with the provisions of Articles 5.1.b) and 13 of the GDPR, as detailed in their letter of February 2, 2023. More specifically, it notes the following facts:

118. In their letter of February 2, 2023, the controlled entities [...]. They had [...] contested that they had taken no measures to comply with their legal obligations “after receiving the notice from the CNPD”. Thus, they stated that they initially intended to wait for the receipt of the CNPD's notice before initiating internal compliance measures and that they did not expect to be “subjected shortly after [the receipt of this notice] to a detailed inspection”. Otherwise, the necessary measures would have been taken more quickly. [...]

They then emphasized that a service note had been established after receiving the “first notice” from the CNPD and remained in place pending guidance from the CNPD in the form of its “final notice”. In support of their argument, they attached [...] [several reports from the meetings of their governing bodies].

119. During the session of the Restricted Formation on June 13, 2023, the controlled entities reiterated their statements.

120. Regarding the first corrective measure proposed by the head of the investigation mentioned in point 116 of this decision to bring the information measures intended for the employees of the controlled entities into compliance with the provisions of Articles 13.1.a), b), c), d), f) and 13.2.d) of the GDPR and more specifically to complete, or respectively rectify, said information measures, the Restricted Formation takes into account the copy of the renewed version of the service note dated January 11, 2022⁸¹ which was attached to the email from the controlled entities dated March 24, 2022, and mentioned in their aforementioned letter of February 2, 2023. However, the Restricted Formation notes that the content of said note was essentially identical to that of the service note dated February 17, 2021⁸². Given that it has already established that this latter document did not contain the elements required by the first level of information (cf. point 46 of this decision), it therefore considers that the same finding applies to the service note dated January 11, 2022. Furthermore, the documentation submitted to the Restricted Formation does not contain any evidence that the renewed information note had actually been transmitted individually to the employees of the controlled entities. In consideration of the insufficient compliance measures taken by the controlled entities in this case and point 95 of this decision, the Restricted Formation therefore deems it necessary to impose the corrective measure proposed by the head of the investigation in this regard.

121. [...]

122. Regarding the third corrective measure proposed by the head of the investigation mentioned in point 116 of this decision to bring the processing into compliance with the provisions of Article 5.1.c) of the GDPR and more specifically to equip the geolocation system installed in construction machinery with a deactivation button, the Restricted Formation, given that it did not uphold the breach related to the principle of minimization retained by the head of the investigation (cf. point 73 of this decision), believes that there is also no need to impose the corrective measure proposed by the head of the investigation in this regard.

123. Regarding the fourth corrective measure proposed by the head of the investigation mentioned in point 116 of this decision to bring the processing into compliance with the provisions of Article 5.1.b) of the GDPR and more specifically to remove from the information notes the purpose related to the tracking of goods, the Restricted Formation recalls that it has established that the tracking of goods due to their nature

⁸¹ Documents 10 and 25 from the head of the investigation.

⁸² Documents 9 and 24 from the head of the investigation.

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particular did not constitute a legitimate purpose of processing (see point 87 of this decision).

In consideration of the insufficient compliance measures taken by the parties involved in this case and point 95 of this decision, the Restricted Formation therefore considers that it is appropriate to impose the corrective measure proposed by the head of the investigation in this regard.

Given the developments outlined above, the National Commission sitting in a restricted formation, after deliberation, decides:

- to uphold the breaches of Articles 5.1.b) and 13 of the GDPR;
- to impose an administrative fine of two thousand five hundred (2,500) euros against Public Body A and Public Body B for the breaches of Articles 5.1.b) and 13 of the GDPR;
- to issue an injunction against Public Body A and Public Body B to bring their processing into compliance with the obligations arising from Articles 13.1 and 2 of the GDPR, and in particular to individually inform employees clearly and precisely about the geolocation system, within a period of two months following the notification of the decision of the Restricted Formation, either by proceeding through a first and second level, or by providing them in a single location or in the same document (in paper or electronic format) information on all the elements required under Article 13 of the GDPR, and more specifically to complete, respectively rectify, the information measures intended for employees, by:
 - o completing the identity of the data controllers;
 - o providing the identity of the data protection officer;
 - o removing the purpose of processing indicated as "tracking goods due to their particular nature (hazardous materials, foodstuffs, ...)";

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- o providing the legal basis for processing in relation to other purposes;
- o providing the legitimate interests pursued;
- o informing about the existence or non-existence of an adequacy decision and, where applicable, indicating the existence of appropriate safeguards and how to obtain a copy thereof;
- o indicating the right to lodge a complaint with the National Commission for Data Protection;
- o harmonizing the rectified German and French information notes so that they have identical content.

Belvaux, September 21, 2023.

The National Commission for Data Protection sitting in a restricted formation

Tine A. Larsen Thierry Lallemand

Alain Herrmann

President

Commissioner

Commissioner

Indication of appeal routes

This administrative decision may be subject to an appeal for reform within three months following its notification. This appeal must be brought before the administrative court and must necessarily be introduced through a lawyer at the Court of one of the Bar Associations.